

STATE OF MICHIGAN
DEPARTMENT OF COMMUNITY HEALTH
BUREAU OF HEALTH PROFESSIONS
BOARD OF PHARMACY
DISCIPLINARY SUBCOMMITTEE

In the Matter of

RANDAL JOHN STUEVE, R.PH.
License Number: 53-02-032465

File Number: 53-10-118527
CONSENT ORDER AND STIPULATION

CONSENT ORDER

WHEREAS, an Administrative Complaint, hereafter Complaint, was issued on January 5, 2011, charging Randal John Stueve, R.Ph, hereafter Respondent, with having violated sections 16221(h) and 17763 of the Public Health Code, 1978 PA 368, as amended; MCL 333.1101 et seq; and

WHEREAS, Respondent has admitted, by Stipulation submitted herewith, that the facts alleged in the Complaint are true and constitute violations of the Public Health Code; and

WHEREAS, the Disciplinary Subcommittee of the Michigan Board of Pharmacy, hereafter Disciplinary Subcommittee, has reviewed the Stipulation and, based upon the matters asserted therein, agrees that the public interest is best served by resolution of the outstanding Complaint; now, therefore,

IT IS HEREBY FOUND that the allegations of fact and law set forth in the Complaint are true and constitute violations of sections 16221(h) and 17763 of the Public Health Code, supra.

Accordingly,

IT IS HEREBY ORDERED that for the aforesaid violations of the Public Health Code, Respondent's license to practice as a pharmacist in the state of Michigan is SUSPENDED for a minimum period of SIX MONTHS AND ONE DAY, commencing on the effective date of this Order. Said periods of suspension shall run concurrently.

IT IS FURTHER ORDERED that reinstatement of a license which has been suspended for more than six months is not automatic and, in the event Respondent applies for reinstatement of the license, application for reinstatement may be made not sooner than 90 days prior to the end of the suspension period and shall be in accordance with sections 16245 and 16247 of the Public Health Code, supra. Further, in support of the application for reinstatement Respondent shall supply clear and convincing evidence to the Michigan Board of Pharmacy, hereafter Board, that Respondent is of good moral character, is able to practice the profession with reasonable skill and safety, that it is in the public interest for Respondent to resume practice, and that Respondent has met the guidelines for reinstatement adopted by the Department of Community Health, hereafter Department.

IT IS FURTHER ORDERED in the event Respondent violates any provision of this order, and if such violation is deemed to constitute an independent violation of the Public Health Code or the rules promulgated thereunder, the Disciplinary Subcommittee may proceed to take disciplinary action pursuant to 1996 AACCS, R 338.1632 and section 16221(h) of the Public Health Code, supra.

IT IS FURTHER ORDERED that this Order shall be effective on the date signed by the Disciplinary Subcommittee, as set forth below.

Dated: 6/8/11

MICHIGAN BOARD OF PHARMACY

By: [Signature]
Chairperson, Disciplinary Subcommittee

STIPULATION

1. The allegations of fact and law contained in the Complaint dated January 5, 2011, are true and constitute violations of sections 16221(h) and 17763 of the Public Health Code, supra.

2. Respondent understands and intends that by signing this Stipulation Respondent is waving the right, pursuant to the Public Health Code, the rules promulgated thereafter, and the Administrative Procedures Act of 1969, 1969 PA 306, as amended; MCL 24.201 et seq, to required the Department to prove the charges set forth in the

Complaint by presentation of evidence and legal authority, and to appear with an attorney and such witnesses as Respondent may desire to present a defense to said charges.

3. Factors taken into consideration in the formulation of the within Consent Order are as follows:

Respondent currently resides in Colorado and does not plan on practicing in Michigan anytime soon, but would like the option to come back to Michigan to practice if the opportunity presents itself.

Respondent has been licensed since 1999 and has had no prior disciplinary actions against his license.

4. The foregoing Consent Order is approved as to form and substance by Respondent and the Department and may be entered as the final order of the Disciplinary Subcommittee in said cause.

5. The foregoing proposal is conditioned upon acceptance by the Disciplinary Subcommittee, Respondent and the Department expressly reserving the right to further proceedings without prejudice should the Consent Order be rejected.

AGREED TO BY:

Melanie B. Brim
Melanie B. Brim, Director
Bureau of Health Professions
Department of Community Health
Dated: 4/27/2011

AGREED TO BY:

Randal John Stueve
Randal John Stueve, R.Ph.
Respondent
Dated: 4/7/2011

This is the last and final page of a Consent Order and Stipulation in the matter of Randal John Stueve, R.Ph., File Number 53-10-118527, before the Disciplinary Subcommittee of the Michigan Board of Pharmacy, consisting of four pages, this page included.
DWC